

25SMCV05502 25SMCV05502

County: los-angeles

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Case Number: 25SMCV05502 Hearing Date: July 30, 2026 Dept: M

CASE NAME: Anfanger, v. Ganzberg, et al.

CASE NO.: 25SMCV05502

MOTION: Demurrer and Motion to Strike
the Answer

HEARING DATE: 7/30/2026

LEGAL STANDARD

In

addition to denials, the answer should contain any and all affirmative defenses or objections to the complaint that defendant may have, and that would otherwise not be in issue under a simple denial. Such defenses or objections are “new matter.” (CCP § 431.30(b).) Generally, a defendant bears the burden of proving “new matter” and, as such, must be specifically pleaded in the answer. (California Academy of Sciences v. County of Fresno (1987) 192 Cal.App.3d 1436, 1442.) “The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff.” (Walsh v. West Valley Mission Community College District (1998) 66 Cal.App.4th 1532, 1546.) Where the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matter but are denials. (Ibid.)

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same pleading of “ultimate facts” rather than evidentiary matter or legal conclusions is required as in pleading a complaint. The answer must aver facts as carefully and with as much detail as the facts which constitute the cause of

action and which are alleged in the complaint. (FPI Development, Inc. v. Nakashimi (1991) 231 Cal.App.3d 367, 384 [defenses must be pleaded in the nature of “yes, the allegations [of the complaint] are true, but . . .”].) The various affirmative defenses must be separately stated and must refer to the causes of action to which they relate “in a manner by which they may be intelligently distinguished.” (CCP § 431.30(g).)

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allegations of the pleading must be regarded as true. (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 730.) All that is necessary against a demurrer or motion to strike is that, upon consideration of all of the facts stated, it appears that the party whose pleading is attacked by such a demurrer is entitled to any relief at the hands of the court against his adversary. (Id. at 733.) When considering a challenge to an answer, the “determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (Ibid.) “[T]he demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.” (Ibid.)

“Liberality

in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on pleader to show in what manner they can amend the pleading, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Plaintiff Nancy Anfanger demurs and moves to strike the Answer of Defendants Steven Ganzberg as Trustee of the Steven Ganzberg Trust, Steven Ganzberg, and Deborah Adair aka Alice Adair, filed on December 22, 2025. In both motions, Plaintiff seeks identical relief against each affirmative defense.

The motions are moot. Defendants properly amended the answer in response to the motions. CCP section 472 allows a party to amend their pleading “once without leave of the court at any time before the answer, demurrer, or

motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” Defendants filed an amended answer on April 24, 2026, well before the date for filing an opposition to the demurrer and motion to strike.

Accordingly, the motions are taken off-calendar as moot.